

**DEPARTMENT SEVEN
JUDGE TIM P. KAM
707-207-7307
TENTATIVE RULINGS SCHEDULED FOR
TUESDAY, APRIL 22, 2025**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30 p.m.

**CHRIS EDWARDS vs. CARVANA LLC; ET AL.
Case No. CL24-05330**

Motion to Compel Arbitration

TENTATIVE RULING

Defendants' unopposed motion to compel arbitration and stay this action pending completion of the arbitration is granted. Defendants have established that plaintiff entered into a written arbitration agreement that covers plaintiff's claims about his vehicle in this case. Defendants have also established that the agreement contains a clause providing that any dispute regarding the validity, enforceability, interpretation, or scope of the arbitration agreement is preserved for the arbitrator. (Declaration of Brittnee Penson, Exhibits A, B, and C). Therefore, pursuant to its authority under 9 USC Sections 2 and 3, and Code of Civil Procedure Sections 1280, 1281.2, and 1281.4, the court orders this matter to arbitration and stays this court action pending completion of the arbitration.

**ILANA RAMOS vs. INFINITE COMPUTER SOLUTIONS, INC.
Case No. CU24-09034**

Defendant's Motion to Stay

TENTATIVE RULING

Defendant INFINITE COMPUTER SOLUTIONS, INC. moves under Code of Civil Procedure section 430.10 to abate Plaintiff ILANA RAMOS's class and Private Attorneys General Act ("PAGA") action alleging wage and hour violations. Defendant

alternatively moves to stay Plaintiff's action using the court's innate authority to control proceedings before it per Code of Civil Procedure section 128.

Code of Civil Procedure section 430.10, subdivision (c) codifies the concept of the plea in abatement. However, the statute permits the defense to object on stated grounds "by demurrer or answer." The statutory plea in abatement raises a request for the trial court's mandatory action (as does the rule of exclusive concurrent jurisdiction) and so by general principles is appropriately invoked by demurrer or answer. (*People ex rel. Garamendi v. American Autoplan, Inc.* (1993) 20 Cal.App.4th 760, 771.) A motion may follow an answer raising the issue of abatement, but a motion alone is only appropriate when asking the trial court to take discretionary action. (*Ibid.*) Defendant has not filed an answer in this matter. Its motion to abate this action is premature.

However, the court separately considers Defendant's motion to stay the action in the interests of judicial economy and using the court's inherent authority to control actions. Defendant is also the defendant in Orange County case 30-2022-01243447-CU-OE-CXC, *Antoine Bresse v. Infinite Computer Solutions, Inc.* (*Bresse*). (Declaration of Joseph F. Desiderio in Support of Motion at ¶ 2, Exhibit A.) *Bresse* is a class action and PAGA lawsuit brought on behalf of persons who submitted background checks to Defendant and also on behalf of all of Defendant's employees employed between four years before the January 31, 2022 filing of the complaint and resolution of the matter. (*Ibid.*) *Bresse* alleged, among other things, that Defendant did not pay its hourly employees their due overtime, denied them meal and rest breaks, and did not reimburse them their expenses. (*Ibid.*) Defendant settled *Bresse* on May 2, 2024 with an agreement that will release the wage and hour claims of its employees employed between January 31, 2018 and May 19, 2024. (*Id.* at ¶¶ 3-7, Exhibit B.) The release includes many different forms of wage and hour claims, encompassing most of those Plaintiff brings here, notably including her claim for failure to provide sick time per Labor Code section 246 (but excluding Labor Code sections 216 or 432). (*Ibid.*) Plaintiff was Defendant's hourly employee from May to October 2023. (Complaint at ¶ 17.) She appears to be in the *Bresse* class as described in the proposed settlement, at least in large part.

The *Bresse* settlement, if finally approved and executed, will have a major effect on the instant case due to the release of class and PAGA claims. Plaintiff will be bound to any PAGA settlement as the PAGA does not contain opt-out procedures. (*Uribe v. Crown Building Maintenance Co.* (2021) 70 Cal.App.5th 986, 1001.) Also, even if she were to opt out of the class settlement dimension of *Bresse*, Plaintiff's standing to assert her claims in this case would be substantially altered or removed.

The court finds that it serves the interests of justice and judicial economy to stay this action so that the effect, if any, of settlement in *Bresse* on Plaintiff's individual, PAGA, and/or class claims can be determined. Defendant's motion to stay is granted. This action is stayed pending final resolution of *Bresse*.

PORTFOLIO RECOVERY ASSOCIATES, LLC vs. MICHELLE LAM
Case No. FCM177522

Motion for Entry of Judgment

TENTATIVE RULING

Plaintiff's motion for entry of judgment under the terms of the parties' settlement agreement is denied without prejudice.

Despite the court's prior order finding service by mail to be inadequate and requiring service in a manner permitted for the service of a summons, Plaintiff has only attempted to serve the renewed motion by mail. Any subsequent motion must be accompanied by proof of service demonstrating that motions papers were served by personal delivery, or some other manner authorized for the service of a summons.

Department 7 is inviting you to a scheduled ZoomGov meeting.
Join ZoomGov Meeting

<https://solano-courts-ca-gov.zoomgov.com/j/1611554664?pwd=T3U4QlBGWWNWaGlhXJTcGxIVHRXZz09>

Meeting ID: 161 155 4664

Passcode: 818575

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